



8/11/25

Casey Steinke, Planner
Planning and Development Services
City of Scottsdale
3939 N. Drinkwater Blvd
Scottsdale, AZ 85251

RE: **19-ZN-2004#2**
Finish Line Auto Club - Perimeter Dr.
P6032 (Key Code)

Dear Mr. Steinke:

Thank you for providing these comments for review. The following is our responses to staff's second review comments regarding the above referenced case.

Significant Zoning Ordinance or Scottsdale Revise Code Issues

The following code and ordinance related issues have been identified and must be addressed with the resubmittal. Addressing these items is critical to determining the application for public hearing and may affect staff's recommendation. Please address the following:

Current Planning

Significant Ordinance Issues:

1. Revise open space plan using .003 for each foot of height over 12' (ZO Sec 5.1804.B.2.). **Calculation was revised, however the OS legend still shows the original provided numbers, despite the calculations in the 'area calculations' box being reduced. Please revise as necessary to match.**
Response: Open Space calculations for both the Industrial and Auto Club lots now match the open space graphic legend totals.
2. Clarify where the parking calcs for lounge/office/patio are coming from in terms of our ordinance categories (proposed at 1:250). The 1:50 storage part has an associated 1:300 for office/admin space which may be the most applicable. **Applicant response acknowledged, however revise site plan data for eastern parcel:**
 - a. Actual SF of lounge & patio not provided
 - b. Parking ratios should be 1:250 for lounge/patio, and 1:300 for office

REQUIRED PARKING:

CLUB (LOUNGE & PATIO) 11,537 S.F./250:	47 SPACES
OFFICE: 2,379 S.F./300=	8 SPACES
STORAGE (1/50 UNITS): 67 UNITS/50 =	2 SPACES
TOTAL REQUIRED=	57 SPACES



Response: 11,537 Square feet is the actual lounge and patio square footages. We are currently showing the 1:250 for this use and the 1:300 for the office use.

Significant Policy Issues:

3. Please revise the project plans to provide additional articulation in the building façade for Building B as it fronts to N. Perimeter Drive. **Unaddressed.**

Response: The elevations for Building B were greatly enhanced. They were a part of the resubmittal. We respectfully request City staff to reconsider. Furthermore, this is an issue to be further refined and discussed during the DRB process. We respectfully request this comment be removed from further City staff review comment letters related to the development Plan Amendment proposal.

4. The City's Sensitive Design Principles and Commercial Design Guidelines promote the use of muted earth tones in applied materials and paint colors. Please revise the project plans and material board to incorporate building colors that meet these design guidelines. **Unaddressed**

Response: We respectfully disagree with this comment. We submitted a significant justification and examples of non-muted earth tones used on several Perimeter Center buildings. We feel this justification warrants discussion in the DRB process. Therefore, this comment should be removed and further discussed once a DRB application is submitted. At that time, we will be happy to discuss with City staff and the DRB members the proposed materials and colors for the proposed buildings.

5. The parking setback currently provided by the property along the east side of N. Pacesetter Way is approximately 45 feet. This is consistent with setbacks provided along the neighboring property located south of the subject site. Please revise the project plans to maintain the existing parking setback along N. Pacesetter Way. **No change with 2nd Submittal. Possible item of consideration in Staff Report.**

Response: By Scottsdale standards, Pacesetter Way is a short, curved roadway with varied setbacks, building heights and landscaped setbacks. The roadway is designed as the perimeter roadway that circles around the northwestern portion of the Perimeter Center. There is no consistent setback and one side of the road varies from the other side of the road with all of the different properties along this short stretch. This comment is not a zoning ordinance requirement. We are respectfully going to continue to design the Pacesetter Way frontage as designed. We are fine with City staff adding this comment to the staff report.

Water and Sewer:

Significant Policy Issues:

6. Redline comments to be addressed and corrected within Water and Sewer Basis of Design (BOD) reports.

Response: Final Basis of Design Reports provided with this submittal.

Engineering:

Significant Ordinance Issues:



7. SRC 47 +48: Any new ROW dedications, and any existing ROW, adjacent to project parcel an in easement form, will need to be dedicated as fees simple through a final plat. **Applicant to acknowledge and resolve Transportation Dept's request for additional right of way, or otherwise address the issue.**

Response: Although we believe the additional right-of-way is unnecessary for this stretch of roadway, our DRB submittal site plan will reflect the additional five (5) feet of right-of-way for Perimeter Drive. If needed, please stipulate the additional five (5) feet within the Development Plan Amendment report.

8. SRC 48: Provide letter of intent from southern neighbor to grant project owner a temporary construction easement for the project's proposed reconstruction of their eastern parking lot and associated drive aisle. **This may not be needed for Development Plan review but will be needed to approve a site plan for DRB hearing. Add a note to site plan accordingly (we may add this to stipulations) or redesign project to not modify non-project parcel.**

Response: Agreed, this is a Development Plan Amendment process, temporary easement discussions with the property owner to the south is unnecessary. We intend to communicate with the property owner to the south throughout the DRB process and have this issue resolved during the DRB process.

Significant Policy Issues:

9. DSPM 5-3.204: Driveway locations shall be as approved by transportation and per type required by transportation. Update all case plans accordingly. **Not addressed.**

Response: A document titled "Finish Line Auto – Site Study – Revised Pacesetter Driveway" is a part of this resubmittal. This site study reflects that this City staff comment and comment #12 below can attain a workable site plan for the industrial building along Pacesetter Way. The revised site plan in this resubmittal places the northern driveway on Pacesetter Way 125 feet (center line to center line) from the adjacent properties driveway to the north per the direction in comment #12 below. Please stipulate the 125' driveway separation distance which will be reflected in our DRB submittal within a couple of weeks.

10. DSPM 6-1.202 + 7-1.201: Preliminary Basis of Design Reports must be reviewed and accepted by the Water Resources Department prior to zoning approval. Update BODs accordingly. **Not addressed.**

Response: Final Basis of Design Reports provided with this submittal.

Transportation:

Significant Ordinance Issues:

11. Need to identify bike parking on the site plan. Zoning Ordinance Sec. 9.103; DSPM Sec. 2.1-308. Development will need (2) bike racks (4) spaces near main building entrance. **Addressed, however during DRB, bike racks will be required per Sec. 9.103.C. That would be 1 bike space per 10 required vehicle spaces for each lot. Western lot does not appear to show bicycle parking.**

Response: So noted and will be addressed on the DRB submittal.

Significant Policy Issues:

12. DSPM 5-3.201 DRIVEWAY SPACING: Provide minimum driveway spacing per Figure 5-3.35 of DSPM (125 feet for local industrial/commercial). Spacing for northern driveway along Pacesetter Way is not



in compliance relative to the existing driveway on the parcel to the north. **Not Addressed. Please comply with the minimum driveway spacing requirements. The city typically requires a standard spacing of 165' on this classification of roadway and we are allowing an exception to the minimum of 125'. The minimum spacing of driveways is not related to the number of vehicles accessing a site.**

Response: See response to City Comment #9 above. We have conducted a site study to demonstrate that the northern driveway on Pacesetter Drive can be moved to be 125 feet from nearest driveway on the adjacent property. Please stipulate the 125' driveway separation distance which will be reflected in our DRB submittal within a couple of weeks.

13. DSPM 5-3.123 INTERSECTIONS: Release sight distance easements at existing driveway location along Pacesetter Way. Provide new sight distance easements at new driveway locations. **Sight distance easements are not shown correctly on preliminary plat, please follow Figure 5-3.26 of the DSPM for sight distance triangle dimensions.**

Response: The Preliminary Plat has been updated accordingly.

14. Traffic Study:

- a. Revise Section IV. Site Access. Location of the northern driveway along Pacesetter Way is not acceptable as it does not meet the minimum driveway spacing requirements (125 feet). **Not Addressed. Please comply with the minimum driveway spacing requirements. The city typically requires a standard spacing of 165' on this classification of roadway and we are allowing an exception to the minimum of 125'. The minimum spacing of driveways is not related to the number of vehicles accessing a site.**

Response: The traffic analysis has been updated to address this comment.

If you have any questions or require an immediate response/revision to avoid a third set of City comments, please feel free to reach out to me.

Sincerely,

A handwritten signature in black ink, appearing to read 'Kurt Jones', is written over a horizontal line.

Kurt Jones, Senior Planner